



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 9, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202104241 regarding Police Officer Christopher Ghee, Tax No. 944591 (DADS No. 2022-27327) and Police Officer Anthony Zanfardino, Tax No. 964848 (DADS No. 2022-27328)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the actions of Police Officer Ghee and Police Officer Zanfardino do not warrant a disciplinary penalty. In this matter, the officers responded to a location where two tenants resided in the same apartment. A female tenant allegedly assaulted the male tenant, which resulted in an open complaint report for the female tenant. Sometime after the initial incident, and while the complaint report for assault was active, the male tenant dialed 911 and reported being scared of leaving his bedroom due to the presence of the female co-tenant in the apartment.

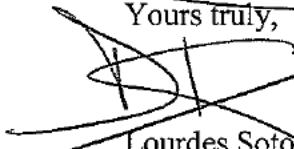
Armed with this knowledge, the officers responded to the scene where the male tenant permitted the officers to enter the common areas of the apartment. Once inside, the officers heard the female co-tenant inside of her bedroom.

The officers' entry into the female tenant's bedroom is justified under the exigency exception. Specifically, while responding to the scene, the officers were advised that the male caller stated that he was fearful of his female co-tenant—the very co-tenant who had assaulted him in the past and against whom a complaint report was lodged with the police. The responding officers then observed that fear once they arrived on the scene and verified that the female co-tenant was in her bedroom. Fearing for their safety, and the safety of others present inside of the apartment, the officers entered the co-tenant's bedroom and arrested her.

Therefore, based on the foregoing, the Police Commissioner had determined that Police Officer Ghee and Police Officer Zanfardino will receive no disciplinary action for the alleged violation of Administrative Guide 304-06 (Prohibited Conduct/Improper Entry).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,


Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office